

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Gross	Team: Squad #06	CCRB Case #: 202305191	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 05/22/2023 2:10 PM	Location of Incident: 28th Precinct station house	18 Mo. SOL 11/22/2024	Precinct: 28
Date/Time CV Reported Mon, 05/22/2023 2:15 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/08/2023 8:27 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Shannon Obrien	03651	954186	028 PCT
2. DI Tarik Sheppard	00000	945351	028 PCT
3. PO Jaskaran Singh	21544	972259	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Christian Saal	26739	943766	028 PCT
2. PO Md Uddin	12096	965891	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Shannon Obrien	Force: Sergeant Shannon Obrien used physical force against § 87(2)(b)	
B . DI Tarik Sheppard	Abuse: Deputy Inspector Tarik Sheppard refused to provide his name to § 87(2)(b)	
C . PO Jaskaran Singh	Discourtesy: Police Officer Jaskaran Singh spoke discourteously to § 87(2)(b)	

Case Summary

On May 22, 2023, § 87(2)(b) filed this complaint with the IAB over the phone with the log number 23-16953. The CCRB received this case on June 8, 2023.

On May 22, 2023, at approximately 2:00 PM, § 87(2)(b) entered the 28th Precinct stationhouse recording on his cell phone. After the officers asked § 87(2)(b) to leave, Sgt. Shannon Obrien grabbed § 87(2)(b) wrist to remove him from the stationhouse (**Allegation A: Force**, § 87(2)(g)). § 87(2)(b) also asked DI Sheppard for his name and shield number and DI Tarik Sheppard told § 87(2)(b) “don’t worry about it” (**Allegation B: Abuse of Authority**, § 87(2)(g)). After leaving the stationhouse, § 87(2)(b) returned and was placed under arrest. While § 87(2)(b) was being arrested, PO Singh allegedly called § 87(2)(b) “soft” and a “pussy” (**Allegation C: Discourtesy**, § 87(2)(g)). § 87(2)(b) was subsequently released from the stationhouse.

§ 87(2)(b) was arrested and charged § 87(2)(a) 160.50. BWC footage was obtained for this incident and can be found in IAs 46 to 51 and this investigation was unable to obtain any other surveillance footage for this incident (**BR 2-7**).

Findings and Recommendations

Allegation (A) Force: Sgt. Shannon Obrien used physical force against § 87(2)(b)
Allegation (B) Abuse of Authority: DI Tarik Sheppard refused to provide his name to § 87(2)(b)

According to the 28th Precinct command log entry made for this incident, § 87(2)(b) was arrested for using his cell phone to record in the stationhouse after being asked to stop recording (**BR 8**).

At the 1:00 timestamp of Sgt. Obrien’s BWC footage, § 87(2)(b) has entered the stationhouse and is filming on his cell phone when PO Christian Saal tells § 87(2)(b) that he is not allowed to record while inside the 28th Precinct stationhouse. § 87(2)(b) continues to record on his cell phone, while PO Saal tells § 87(2)(b) that he will be arrested unless he stops recording. Sgt. Obrien, PO Singh and DI Sheppard then walk out of the stationhouse with § 87(2)(b). At the 1:20 timestamp, § 87(2)(b) asks PO Singh for his name and shield number and PO Singh tells him his name and shield number. At the 1:40 timestamp, Sgt. Obrien then tells § 87(2)(b) to let go of the front entrance door, grabs § 87(2)(b) wrist and moves it off the door. DI Sheppard then tells § 87(2)(b) that he was asked to leave, and § 87(2)(b) asks DI Sheppard for his name and badge number. DI Sheppard tells § 87(2)(b) “Don’t worry about it,” and closes the front entrance door into the stationhouse so that § 87(2)(b) cannot enter the stationhouse (**BR 2**).

§ 87(2)(b) stated that, on May 22, 2023, at approximately 2:10 PM, § 87(2)(b) walked into the 28th Precinct stationhouse to file a police report. As he walked into the stationhouse, § 87(2)(b) took out his cell phone and began to record this incident. Upon seeing that § 87(2)(b) was recording while in the stationhouse, PO Saal told him to put his phone away. § 87(2)(b) asked why, and PO Saal told him that recording in the stationhouse was prohibited. PO Saal also pointed directly at a sign next to the lobby’s front entrance, which read that recording in the stationhouse was prohibited. § 87(2)(b) looked at the sign, which did not cite any kind of law or statute and told PO Saal that this was not a law and continued to record on his cell phone. In response, PO Saal told § 87(2)(b) to stop recording or that he would be arrested for trespassing. § 87(2)(b) continued to record this incident, so Sgt. Obrien and other officers pushed him out of the stationhouse, although § 87(2)(b) did not recall how exactly he was pushed out. After being pushed out of the stationhouse, § 87(2)(b) asked for the name and shield numbers of all the officer that pushed him, but none of the officers provided it (**BR 9**).

DI Sheppard stated that § 87(2)(b) was told that he was not allowed to record inside the 28th Precinct stationhouse. While standing by the front door into the stationhouse, § 87(2)(b) made a general statement asking for someone's badge number, which DI Sheppard did not understand to mean that § 87(2)(b) was asking for his badge number, and he therefore did not provide § 87(2)(b) with his name. DI Sheppard also never saw Sgt. Obrien touch § 87(2)(b) even after reviewing Sgt. Obrien's BWC footage of this incident (**BR 10**).

Members of the public are not allowed to photograph and/or record police activity within Department facilities. Members of the service may order any member of the public who is photographing or recording within Department facilities to stop such activity. If such person refuses to stop, they then should be ordered to leave the premises. If such person refuses to leave the premises, members of the service may take proper enforcement action under the trespass statutes NYPD Administrative Guide Procedure No. 304-21 (**BR 11**). If the use of de-escalation and conflict negotiation techniques fail to persuade an uncooperative subject to cooperate, members of the service present should, if appropriate and consistent with officer safety, apply no more than the reasonable force necessary to gain control NYPD Patrol Guide Procedure No. 221-02 (**BR 12**). Officers must courteously and clearly state their rank, name, shield number and command, or otherwise provide them, to anyone who requests them to do so NYPD Patrol Guide Procedure No. 203-09 (**BR 13**).

While § 87(2)(b) alleged that officers, including Sgt. Obrien, pushed him out of the stationhouse, BWC footage shows that the only time that officers used force was when § 87(2)(b) was holding onto the front door of the stationhouse after being told to leave the stationhouse. The BWC footage shows that, in response, Sgt. Obrien told § 87(2)(b) to let go of the entrance door; when he did not move his hand, Sgt. Obrien grabbed his wrist and moved his hand off the door. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

While § 87(2)(b) also alleged that multiple officers refused to provide their name and shield number, BWC footage shows that § 87(2)(b) only asked PO Singh and DI Sheppard for their name and shield number, and that PO Singh provided his name and shield number in response. § 87(2)(g)

§ 87(2)(g)

However, the BWC footage also shows that § 87(2)(b) asks DI Sheppard for his name and shield number, and that DI Sheppard said, "don't worry about it," in response before closing the door. While DI Sheppard stated that he did not understand this request to mean that § 87(2)(b) wanted his name and shield number specifically, the BWC footage shows that § 87(2)(b) is speaking to DI Sheppard when he makes this request.

A search of the CTS database for MOS history shows that DI Sheppard is no longer a member of service. A request was made to the Monitoring Analysis Section and the confirmation paperwork will be enclosed upon receipt.

§ 87(2)(g)

§ 87(2)(g)

Allegation (C) Discourtesy: PO Jaskaran Singh spoke discourteously to § 87(2)(b)

At the 1:00 timestamp of Sgt. Obrien's BWC footage, Sgt. Obrien, PO Singh and PO Saal place § 87(2)(b) under arrest and PO Saal tells him that he was told to leave the stationhouse by the commanding officer. PO Saal takes § 87(2)(b) phone and § 87(2)(b) is arrested and processed in front of the front desk. PO Singh never says anything to § 87(2)(b) while § 87(2)(b) is being processed and is holding § 87(2)(b) arms along with PO Md Uddin. While he is being processed, § 87(2)(b) asks PO Singh and PO Uddin whether they want to "suck my dick." At the 4:40 timestamp, § 87(2)(b) is walked to the holding cells in the stationhouse. The BWC footage does not capture the audio of the conversation DI Sheppard and other officers have with § 87(2)(b) in front of the holding cell between the 4:40 timestamp and the 6:20 timestamp. At the 6:20 timestamp, DI Sheppard tells § 87(2)(b) to "be a good boy and do what you're told." DI Sheppard and other officers then leave § 87(2)(b) in his holding cell and the BWC footage does not ever capture § 87(2)(b) referring to himself as a "good boy" (BR 5).

§ 87(2)(b) stated that, after he was pushed out of the 28th Precinct stationhouse, he entered the stationhouse again and PO Singh arrested him along with other officers. After § 87(2)(b) was placed in handcuffs, § 87(2)(b) said, "fuck you," and "suck my dick," to the officers. In response, PO Singh called § 87(2)(b) a "pussy," and told § 87(2)(b) that he was "soft." § 87(2)(b) was then placed in a holding cell inside the stationhouse and did not recall anything else being said between himself and the other officers (BR 9).

DI Sheppard stated that § 87(2)(b) came back into the 28th Precinct stationhouse after a short amount of time and was arrested by other officers and processed by the front desk. DI Sheppard did not hear any officers use profanity while speaking to § 87(2)(b) during this time. § 87(2)(b) was then placed in a holding cell and was whispering to one of the officers, "if I'm a good boy, will you suck my dick." § 87(2)(b) kept saying this and asked DI Sheppard, "if I'm a good boy, will you suck my dick." DI Sheppard therefore responded, "be a good boy and follow the rules." DI Sheppard called § 87(2)(b) a "good boy," because § 87(2)(b) repeatedly referred to himself this way (BR 10).

§ 87(2)(g)

PO Singh stated that, after § 87(2)(b) was arrested, PO Singh was holding him while he was being processed by the front desk in handcuffs. PO Singh never called § 87(2)(b) "soft," or a "pussy," and did not speak to § 87(2)(b) while he was being processed at the stationhouse (BR 14).

While § 87(2)(b) stated that PO Singh called him a "pussy," and "soft," at some point before § 87(2)(b) was placed in a holding cell, BWC footage shows that PO Singh never said this to § 87(2)(b) at any point before he was placed in his holding cell and PO Singh stated that he never used these words in front of § 87(2)(b).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 15).

- PO Singh has been a member-of-service for two years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Obrien has been a member of service for 10 years and has been a subject in one CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g)
- DI Sheppard has been a member of service for 19 years and has been a subject in four CCRB complaints and 13 allegations, of which two were substantiated:
 - 202003980 involved two substantiated allegations of force against DI Sheppard. The Board recommended charges and the NYPD imposed no penalty.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 16, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 16**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 6

Investigator:	<u>Inv. Michael Gross</u>	<u>Inv. Michael Gross</u>	<u>08/17/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>8/6/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date